

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 25, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney.

Following the pledge of allegiance, Mayor Orr welcomed and recognized dignitaries from the City of Cheyenne's Sister City Accra, Ghana, and expressed appreciation for their efforts in traveling to Cheyenne. Mayor Orr shared information on commonalities between the two cities and introduced the Mayor of Accra, the Honorable Mohammed Adjei Sowah, who introduced each dignitary in attendance and their area of legislative or administrative oversight.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Case and Mr. Roybal, Agenda Item #12 was removed from the Consent Agenda. Upon request by Mr. Roybal, and pursuant to support received by Mr. Cook and Mr. White, Agenda Item #15 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Case and Dr. Rinne, Agenda Item #16 was removed from the Consent Agenda. Upon request by Mr. Johnson, and pursuant to support received by Mr. Roybal and Mr. White, Agenda Item #17 was removed from the Consent Agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Cook and Mr. Roybal, Agenda Item #22(b) was removed from the Consent Agenda. Mr. Shanor recused himself from voting participation on Consent Agenda items due to an affiliation with the State Land and Investment Board (Consent Agenda Item #18), and vacated Council Chambers. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

Mr. Laybourn moved to suspend the rules to change the order of the agenda by moving Agenda Item #16 (Resolution Thanking the Cheyenne 150th Anniversary Celebration Steering Committee) to be forwarded as the next item to be acted upon, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

RESOLUTION – Thanking the Cheyenne 150th Anniversary Celebration Steering Committee. Appreciation was expressed to Committee Coordinator Mona Pearl and all members of the Committee for their service in organizing and contributing to the success of the numerous celebration events. Following the reading of the Resolution in its entirety by Mayor Orr, Mr. Roybal, reporting for Public Services Committee, moved to adopt, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body. (#5878)

[CA] Minutes from Regular Meeting of the Governing Body on September 11, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Inquiry was made regarding vouchers payable to: Laramie County Community Partnership (consultant services affiliated with Cohort 11 funding for Youth Alternatives); Officials for Fun Club (officiating services for 2017 volleyball season and training session); Stalker Radar (new radar detection equipment for Police vehicles), and Wyoming Bank and Trust (payment on refunding and improvement revenue bonds/parking structures). Providing information available on the vouchers of interest were: Ron Downey, City Treasurer; Teresa Moore, Director, Community Recreation and Events, who noted they would provide additional information relative to the vouchers for Laramie County Community Partnership and Officials for Fun Club, and Chief Brian Kozak, Police Department. Comment was made regarding the voucher payable to Yuckos, Inc. and the cost of dog refuse litter bags for public parks. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Chambers.

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Sections 1.4.3 and 5.7.1 of the Cheyenne Unified Development Code (UDC) to clarify the definition of ‘through lot’ for accessory structure setback purposes. Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” -- all members of the governing body. (#4203)

ORDINANCE – 2nd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-1 – Agriculture and Rural Residential (County) to AR Agricultural Residential for all of Blocks 146, 147, 148 and 149, Inclusive, Interior Heights, Second Filing, City of Cheyenne, Laramie County, Wyoming; along with all of those adjacent rights-of-way contained within the plat boundary (including all of those intervening 15' alleys and all of those intervening portions of Kelley Avenue, Gadds Avenue and Holmes Avenue); and the remaining one-half (1/2) of those adjacent rights-of-way as shown (including E.40' York Avenue, N.30' 12th Street, W.40' Talbot Avenue and S.30' 11th Street), City of Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of W. College Drive and Grand Harmony Boulevard). Mr. Roybal moved to approve on second reading with staff conditions #1 through 3, seconded by Mr. Cook. Upon inquiry regarding potential conflict with similar street names, Eric Hammer, Planning and Development office, clarified an affiliated plat would vacate existing streets and did not dedicate new streets so street names were not an issue. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE – 2nd READING – Repealing Chapter 5.32, Bingo and Pull Tabs, in its entirety; amending Chapter 5.04, Business Licenses Generally, Section 5.04.030, Types of businesses, activities and events, and Chapter 5.08, Business License Fees, Section 5.08.050, Bingo and pull tabs, of Title 5, Business Licenses and Regulations; amending Chapter 9.08, Offenses Against Public Peace and Decency, Section 9.08.030, Gambling-Permitted if authorized by state law-Limitation, and repealing Chapter 9.08, Offenses Against Public Peace and Decency, Section 9.08.040, Violations by owner or occupant of premises where gambling conducted, of Title 9, Public Peace and Welfare, of the code of the City of Cheyenne, Wyoming. Chief Brian Kozak, Police Department, reviewed provisions contained in state statute (Wyo. Stat. § 6-7-101 et seq.) compared to current city code addressing gambling and bingo/pull tabs games, and recent state law change removing the prohibition on gambling in licensed liquor establishments, noting illegal gambling is addressed as a violation elsewhere in state law. He noted state law adequately covers concerns that years ago were put into place in city code, advising the provisions in city code were out of date as state law has since been changed to be more specific. He further advised there are currently eight business licenses issued by the City to eligible non-profit organizations engaging

in bingo/pull tab activities, and applying provisions of state law only would be less confusing for those conducting these types of games and less of a burden on law enforcement relative to staffing resources. Chief Kozak stated the Police Department will continue to investigate gaming issues on an as needed basis and the proposed ordinance will still allow law enforcement officers to cite violators into either Municipal Court or Circuit Court, and provided information on games of skill that are starting to appear in many community business establishments. An explanation of proposed changes to City Code Title 9 regarding allowable gambling when a bona fide social relationship exists was also provided by Chief Kozak. Mr. Roybal reported there was no recommendation on the item from Public Services Committee. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Upon inquiry, Chief Kozak explained, if the ordinance was approved, individuals would need to conduct their own research and make their own determination on whether certain types of electronic machines were legal and not considered gambling machines pursuant to state law provisions, and if any machines were found to be illegal, law enforcement would still have the authority to investigate and seize the machines. Also upon inquiry, Chief Kozak stated his belief that under state law an eligible non-profit organization wishing to conduct pull tab games must do so only on premises owned or occupied by the nonprofit organization. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Cook voting “no”.

ORDINANCE – 2nd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. Roybal. Comment was made that there may be an amendment brought forward at the next Finance Committee meeting. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Johnson voting “no”.

RESOLUTION – Authorizing the addition of twenty-nine (29) structures and removal of two (2) structures in the Downtown Cheyenne Historic District from the Contributing Structures List maintained by the City’s Planning office. Stephanie Lowe, Planning and Development office, provided an update on the status of properties included on the list; properties whose owners have not responded to “opt out” letters, and communication efforts made by the City’s Historic Preservation Board. She explained there are now 20 structures to be added and 12 structures to be removed. Amy Smith, on behalf of the property owner of 415 W. 16th Street, Bart’s Flea Market building, designated as building #100D in the consultant’s report, requested City Council reclassify the building from a C-2 (Contributing) designation, as listed in the consultant’s report, to a NC-1 (Noncontributing Nonintrusive) status to avoid any unknown impact the classification may have on property taxes and insurance. Mr. Luna moved to adopt, seconded by Mr. White. Upon inquiry, Ms. Lowe explained the consultant’s recommended classification of buildings has no impact as the report is not recorded or filed, and structures on the Contributing List would only be affected if demolition or building moving permits were involved. Mr. Shanor moved to amend the table of properties by adding an asterisk in the far right corner next to Bart’s Flea Market line and placing a corresponding asterisk at the end of the table with the wording “* Property owner has requested a NC-1 (Noncontributing Nonintrusive) classification”, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Johnson voting “no”. Concern was expressed with inclusion of buildings on the Contributing List without approval by the property owner. Upon request for clarification, Ms. Lowe verified are now 20 structures to be added to the list with 12 removed. Mr. Shanor moved to amend by changing the number of structures authorized to be added to the Contributing List for the Downtown Cheyenne Historic District from 29 to 20 and changing the number of structures to be removed from 2 to 12, seconded by Mr. White. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion as twice amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Case and Mr. Shanor voting “no”. (#5879)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Interior Heights, Fourth Filing, a replat of all of Blocks 146, 147, 148 and 149, Inclusive, Interior Heights, Second Filing, City of Cheyenne, Laramie County, Wyoming; along with all of those adjacent rights-of-way contained within the plat boundary (including all of those intervening 15' alleys and all of those intervening portions of Kelley Avenue, Gadds Avenue and Holmes Avenue); and the remaining one-half (1/2) of those adjacent rights-of-way as shown (including E.40' York Avenue, N.30' 12th Street, W.40' Talbot Avenue and S.30' 11th Street), City of Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of W. College Drive and Grand Harmony Boulevard). Mr. Roybal moved to adopt with staff conditions #1 through 3, seconded by Mr. Case. Mr. Roybal moved to postpone to October 9, 2017, seconded by Mr. Luna. It was noted a postponement would allow for the affiliated zone change request (Agenda Item #14) to catch up procedure-wise with the Final Plat resolution. Motion to postpone carried. Voting “yes” -- all members of the governing body.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Pershing Marketplace, 1st Filing, a replat of all of Block 1 (Lots 1 thru 4, inclusive), and all of Block 2 (Lots 1 thru 6, inclusive), and all of those 20' alley rights-of-way, adjacent to said Blocks 1 and 2, and all of May Place (60' R/W), adjacent to said Blocks 1 and 2, McCann Homesites, City of Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of E. Pershing Boulevard and N. College Drive). Mr. Roybal moved to adopt with staff condition #1, seconded by Mr. Luna. Eric Hammer, Planning and Development office, explained, upon inquiry, there are currently no confirmed tenants for the area at this time and there may be a future plat action. Motion carried. Voting “yes” -- all members of the governing body. (#5880)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Mission Village, situated in a portion of the S½SE¼ of Section 22, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue). Seth Lloyd, Planning and Development office, stated discussion had been held regarding access onto Dell Range and the applicant has submitted a revised plat map to reduce the size of the access easement on the south portion of the lot. Mr. Lloyd submitted a copy of the revised map (on file with City Clerk's office). Mr. Roybal moved to adopt, seconded by Mr. Cook. Mr. Roybal moved to amend by revised Final Plat map dated September 23, 2017, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” -- all members of the governing body. Main motion carried. Voting “yes” -- all members of the governing body. (#5881)

RESOLUTION – Joining the City of Cheyenne to a Community-Wide Visioning and Planning Initiative. Mr. Roybal moved to adopt, seconded by Mr. Case. Upon inquiry, Dr. Joe Schaffer, President, Laramie County Community College, provided a brief background on the purpose of the initiative; proposed member monetary contribution, and his interpretation of the definition of the terms “rigorous assessment” and “common purpose”. Dr. Schaffer noted there is no official title for the initiative group as yet; explained engagement of a consultant is planned to provide evidence formed results to identify common community goals within a 12 month time frame, and stated grant funding through the Economic Development Joint Powers Board will assist with the project. Discussion included past planning endeavors regarding studies with no follow-up implementation. During discussion, Dr. Rinne raised a point of order regarding who had the floor to speak with Mayor Orr clarifying she would entertain continuing discussion by City Council members. Discussion continued on determining role responsibilities involving property development or redevelopment and included additional information provided by Dr. Schaffer. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Johnson voting “no”. (#5882)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a \$1.6 Million Loan from the Clean Water State Revolving Fund for funding the Dry Creek Interceptor Rehabilitation and authorizing the Board Director to sign all loan documents. Motion (per Consent Agenda) carried. (#5883)

[CA] RESOLUTION – Authorizing the City’s Director of Community Recreation and Events, the City Treasurer and the City’s Events Coordinator to establish a process for expedited review and approval of contracts for events scheduled at City venues – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] State Real Property Lease Agreement No. 8-09466 between the City of Cheyenne and State of Wyoming, Department of Administration and Information, General Services, for rental of parking spaces located at the Cox Parking Structure (revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement for CB&Q Rail Trail and Avenues Connector between City of Cheyenne and Western Research & Development Ltd. – referred to Finance Committee.

[CA] Rental Agreement renewal between City of Cheyenne Ice and Events Center and Cheyenne Capitals Youth Hockey Association (revenue to City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older under Title III-B Program Grant for FY18 – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Wyoming Department of Transportation for Wyoming Rural Public Transit funds to assist in providing local match for operating funds for the Transit program for FY2018 – referred to Finance Committee.

[CA] Consideration of Bid #E-3-18 for furnishing two new 2017 four-wheel steering street sweepers for the Street & Alley Division (2015-2018 1% sales tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-4-18 for furnishing one new 2017 1500 chipper for the Forestry Division (2015-2018 1% sales tax) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract 6628 between the City of Cheyenne and Pole Mountain Electric, Inc. for the Dell Range/Yellowstone Signal Upgrade Project (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$15,000.00). (#6628)

[CA] Amendment to Contract No. 6630, Professional Services Agreement for Benefit Consulting Services between the City of Cheyenne and NOVO Benefits LLC (f/k/a Corporate Benefits Consortium, LLC). Denise Freeman, Director of Human Resources, provided a brief history on the employee health benefits program and explained the company’s consulting services that have been provided, since March, in reviewing and evaluating a new insurance provider, resulting in cost savings to the City, and providing employee advocate services. She noted the amendment would continue services through December and will assist staff with professional expertise, including compliance with the Affordable Care Act and other federal regulations. She indicated a Request for Proposals for future consultant services will be issued and stated she is looking at forming an employee benefits committee. Mr. Luna moved to approve, seconded by Mr. White. Upon inquiry, Ms. Freeman explained data is currently being gathered on loss ratio/history to be more proactive in seeking future insurance coverage proposals. Discussion included

timeliness of future insurance coverage proposals and training to staff that can be provided by the consultant. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”. (#6630)

[CA] Amendment No. 1 to Memorandum of Understanding (Contract No. 6680) between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City. (Revenue to City). Motion (per Consent Agenda) carried. (#6680)

Re-Appointment of Maynard J. Richmeier to the Cheyenne Housing Authority Board. Mr. Roybal moved to approve, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointee).

Announcement was made of a public hearing to be held October 9, 2017 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for all of the W1/2 Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C).

Under other business:

Mr. Johnson commented on business advertising sales practices by CGI Communications (company under contract with the City to produce an updated community video to be posted on the City website which includes local business sponsorships included in the video format), noting he has received several complaints about the company’s assertive marketing practices. Sylvia Hackl, City Attorney, advised the contract has been reviewed; that local businesses may decline to participate in advertising or they may contact the Mayor’s office with their concerns, and that contact with CGI could be made to ameliorate the company’s local marketing approach.

Mr. Johnson requested an update on Mayor Bloomberg’s Mayors Challenge grant funding initiative. Mayor Orr advised City staff and select members of the community recently met to discuss community issues that may be considered for submission for the initiative. She provided information on the issues and ideas that were reviewed, noting the Flight the Blight Project was selected by the committee as a project to submit for the Challenge initiative by the October 20th application deadline.

Mr. Luna expressed appreciation to Public Works Department staff for addressing the 17th Street alley concerns resulting in closure of access to the area.

Mr. Shanor moved, pursuant to Wyo. Stat. §16-4-405 (a)(ii) and (iii), to meet in executive session for the purpose of considering a personnel matter and proposed litigation to which the City may be a party, seconded by Mr. Case. Mayor Orr advised the motion was not debatable. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Luna voting “no”. Mayor Orr stated the motion to move into executive session for the purpose stated by Council President Shanor carried; the executive session would be held in the City Council Administrative Office and would not be open to the public. In addition to members of the governing body, Mayor Orr announced the City Attorney and City Clerk would attend the executive session, and following the executive session further action by the governing body would not be taken, therefore, the regular meeting of the governing body would be officially adjourned following closure of the executive session. The governing body vacated Council Chambers at 7:39 p.m. to meet in executive session.

The meeting was officially adjourned at 8:53 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
October 6, 2017